

**BEFORE THE
FEDERAL MARITIME COMMISSION**

EUROMARKET DESIGNS, INC.,

Complainant,

v.

MSC MEDITERRANEAN SHIPPING COMPANY)
SA, OCEAN NETWORK EXPRESS PTE. LTD.
EVERGREEN LINE JOINT SERVICE
AGREEMENT (FMC#011982), EVERGREEN
MARINE CORP. (TAIWAN) LTD., EVERGREEN
MARINE (UK) LIMITED, ITALIA MARITTIMA
SpA, EVERGREEN MARINE (HONG KONG)
EVERGREEN MARINE (SINGAPORE) PTE, LTD.
HMM COMPANY LIMITED, MAERSK A/S, CMA
CGM S.A., APEX MARITIME CO, INC., CHINA
UNITED TRANSPORT, INC., COSCO SHIPPING
LINES CO., LTD., AND WAN HAI LINES, LTD.,

Respondents.

DOCKET NO. 25-03

**RESPONDENT’S MOTION FOR ENLARGEMENT OF TIME TO FILE AN ANSWER
OR TO OTHERWISE MOVE**

Pursuant to Federal Maritime Commission Rule of Practice and Procedure 69, 46 C.F.R. § 502.69, Respondent APEX Maritime Co, Inc. (“APEX”) hereby moves that the deadline for the filing of an answer or to otherwise move be extended thirty days from the current date of February 3, 2025, to March 5, 2025.

Although the Notice of Filing of Complaint (Document No. 6) was served on January 8, 2025, undersigned counsel was not instructed in this matter until January 22, 2025 and on the same day did make contact by telephone with opposing counsel for the Complainant seeking their agreement to a thirty-day extension to file an Answer.

Respondent believes this extension of time is necessary to adequately respond to Euromarket Design, Inc.'s Complaint and the undersigned counsel requires time to confer with APEX regarding the present matter.

Further, pursuant to 46 C.F.R. § 502.102(a), while the present Motion for Enlargement of Time is being filed less than seven days before the scheduled filing date, undersigned counsel received only today, January 31, 2025, opposing counsel's confirmation that Claimant does not object to the requested thirty-day time expansion. Thus, reasonable grounds exist for the failure to meet this requirement.

In accordance with Rule 71, 46 C.F.R. § 502.71, the undersigned did confer with counsel for Euromarket Design, Inc. regarding this request and has obtained confirmation that their client does not object to the requested thirty-day extension. Accordingly, good cause exists to grant the requested extension, and APEX submits that this will not cause any undue delay or disadvantage.

Respondent APEX therefore respectfully requests that an Order be issued permitting Respondent until March 5, 2025 to file its first responsive pleading in this proceeding.

Dated: New York, New York
January 31, 2025

Respectfully submitted,

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CERTIFICATION OF SERVICE

I hereby certify that on this 31 day of January, 2025, the foregoing document was served via email on all counsel of record as follows:

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